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Law of Georgia on Elimination of Domestic Violence, Protection of and Support to Its Victims

Chapter 1. General Provisions

Article 1. Scope of Application of the Law

This law defines unity of actions characteristic to domestic violence, legal and organizational grounds for identification of and combat with domestic violence, as well as guarantees of legal and social protection for victims of domestic violence.

Article 2. Aim of the law

This Law aims at:

a. By recognizing equality in rights of members of the family, creation of firm legislative guarantees for the protection of rights and freedoms of the family members and their physical and mental integrity;
b. Creation of effective legal mechanisms for identification, elimination and prevention of domestic violence;
c. Ensuring access to justice to the victims of domestic violence;
d. Establishment of the basis for the protection, support and rehabilitation for victims of domestic violence.
e. Ensuring cooperation between various institutions for the purpose of prevention of the domestic violence and its elimination.

Article 3. Domestic Violence

Domestic violence stands for violation of constitutional rights and freedoms of one family member by the other, in conjunction with physical, psychological or sexual violence, coercion or threat to undertake such actions.

Article 4. Use of Terms in the Law

The concept and terms used in the Law shall be given the following meaning:

a. Physical violence- battery, torture, injury, restriction of liberty or any other action that causes physical pain or suffering, restriction of food, accommodation and other conditions for normal development, as well as isolation of the minor from his/her parents (custodian), or failure to meet requirements concerning his/her state of health that may cause harm to the health of the minor, violate his/her personal dignity or lead to his/her death;

b. Psychological violence- offence, blackmail, degrading treatment, threat or
any other act that violates pride and dignity of the human being;

c. Coercion- physical or psychological coercion of the person to perform or to
abstain from performing an act, performance or non-performance of which represents the right of the person, or coercion to stand certain influence against his/her will;
d. Sexual violence- an act that violates sexual liberty and integrity of the person,
as well as sexual intercourse with or other act of sexual nature or immoral act against the minor;

e. Economic violence- restriction of the right to property, right to engage in
labor activities and right to enjoy property in joint possession;

f. Victim- family member, experiencing physical, psychological, sexual, economic violence or coercion.

g. Family members- mother, father, grandfather, grandmother, spouse, child
(stepchild), adopted child, foster parents, grandchild, siblings, parents of spouse, children-in-law,. For the purpose of this law family member also includes, former spouse, persons in non-registered cohabitation, guardians, as well as persons who live or lived together

h. Abuser- member of family who inflicts, physical, psychological and economic violence or coercion against another family member.

i. Shelter- temporary residence of domestic violence victims; or a place of temporary placement of the domestic violence victim, founded in the system of the Ministry of Labour, Healthcare and Social Protection or on the basis of an NGO, where victims are provided with rehabilitation and protections services. Until enforcement of the Chapter VI of the law, relations' and friends families.

j. Rehabilitation Centre- Place of temporary placement of the abuser, serving
the purpose of the abuser's rehabilitation, which shall be created in accordance with established guidelines in the system of the Ministry of Labour, Healthcare and Social Protection or by a non-entrepreneurial legal person.

Article 5. The Legislation of Georgia on Elimination of Domestic Violence, Protection of and Support to Its Victims

The legislation of Georgia on elimination of domestic violence, protection of and support to its victims encompasses the Constitution of Georgia, international treaties and agreements of Georgia, this Law and other normative acts of Georgia.

Chapter II. Prevention of Domestic Violence

Article 6. Mechanisms for Prevention of Domestic Violence

1. Mechanisms of domestic violence prevention envisage unity of social, economic, legal and other means, aimed at elimination of reasons and preconditions of domestic violence, as well as elimination of facts of domestic violence, prosecution of an abuser, his/her rehabilitation and adaptation.
2. The State through its authorized bodies shall support and ensure introduction
and application of mechanisms for the domestic violence prevention.
3. Mechanisms for prevention of the domestic violence include:

a. analysis, study and evaluation of factors, representing cause of the domestic violence;
b. introduction of effective legal methods for identification and elimination of facts of domestic violence;
c. maintenance of statistics;
d. implementation of preventative measures towards persons, belonging to the risk group of abusers;
e. Carrying out information-education campaign to ensure that people are

aware of their rights and obligations, protection guarantees, including rights and obligations, providing for equality and responsibilities to each other;
f. spread and accessibility of information on amenabilities of the abuser, rights of victims and protection of such right;
g. organization and delivery of special education courses on support and protection of victims of the domestic violence and rehabilitation of abusers;
h. development of specialized programmes with stakeholder organizations and their support to ensure implementation of preventative measures.

Article 7. Introduction of Preventative Measures

1. Under its competence and in accordance with this law, preventative measures shall be the introduced by: the Ministry of Labour, Healthcare and Social Protection of Georgia, Ministry of Internal Affairs of Georgia, Ministry of Education and Science of Georgia, Procuracy and Judiciary.
2. In introducing preventative measures relevant state bodies shall cooperate with
other stakeholders working on domestic violence human rights and provide for planning and implementation of joint projects.

Article 8. Social Services

1. Within its competence and in accordance with this law, the Ministry of Labour, Healthcare and Social Protection shall provide for social services in families to prevent violence and introduce mechanisms.
2. Within its competence, the Ministry of Labour, Healthcare and Social Protection shall provide for:
a. study and relevant analysis of domestic violence causes and support to family members in overcoming disputes;
b. support to victims of violence;
c. jointly with relevant state institutions identification of abusers' risk-groups and assistance in overcoming problems;
d. participation in protective order process;
e. monitoring over activities under protective and restrictive orders;
f. development and support to implementation of programs aimed at assistance to victims and abusers and their social rehabilitatin.

Chapter III. Mechanisms for Identification and Elimination of Domestic Violence

Article 9. Mechanisms for Identification and Elimination of Domestic Violence

1. To the ends of identification and elimination of domestic violence, criminal,
civil and administrative law mechanisms shall apply.
2. Criminal law mechanisms shall apply where an act of domestic violence contains elements of a criminal offense.
3. Civil law mechanisms shall apply where the damage inflicted gives rise to
obligation to compensate damages in accordance with the civil law.
4. Administrative law mechanisms shall apply where an act is of insignificant
public danger, does not give rise to criminal responsibility and which can be dealt with by application of administrative law provisions.

Article 10. Protective and Restrictive Orders

1. For the purpose of immediate effect (response), protection of the victim and certain restriction of the abuser's activities, relevant bodies as a temporary measure may issue a protective or restrictive order.
2. A protective order is in act issued by the first instance court judge based on administrative proceedings, which defines temporary protection measures of victims in cases of domestic violence, except cases, where the grounds for instituting a criminal proceeding exists and the person is deprived of liberty based on the restrictive measure.
3. Restrictive order is an act issued by the authorized employee of police, which defines temporary protection measures of victims in cases of domestic violence and which shall be submitted to the court for approval within 24 hours.
4. Failure to comply with the conditions prescribed by protective and restrictive order shall lead to criminal responsibility of the abuser.

Article 11. Right to Request the Protective Order

The right to request the protective order shall rest with the victim, his/her family member or at the consent of the victim, a person providing him/her with medical, legal or psychological aid; in cases of violence against a child, institutions of custody and care shall also have this right.

Article 12. Terms of Validity of the Protective Order

1. The protective order shall be issued for the period of 3 months and the terms
of its validity shall be determined by the court.
2. The court shall be authorized to decide on extension of the protective order.
The protective order may be extended within its validity period for a term not exceeding 3 months, unless the risk against the victim or another family member exists.

3. The protective order may be annulled based on the court decision if the parties
concerned reconciled and jointly addressed the court with the request to abolish the protective order, except cases listed in the paragraph 2 of this article and article 13.

Article 13. Effect of the Protective and Restrictive Orders in case of the Victim's and Abuser's Reconciliation.

Reconciliation of parties shall not hinder issuance of the protective or restrictive order, neither it shall not cause annulment of the issued protective or restrictive order, if the act of domestic violence violates interests of other family members, especially, minors.

Chapter IV. Specific Measures for Protection of a Minor from Domestic Violence

Article 14. Separation of a Child from a Violent Family

1. Existence of traces of physical abuse shall become an unconditional basis for
raising the issue of separation of the child from violent parents (parents) as established by law. Until the final decision, the court shall deal with issue of separation by way of temporary measure, namely, the order.
2. In case of existence of other forms of violence and upon referral of one of the
parties to the court as indicated in the article 11, the court shall consider an issue of the relationship of the child with the abuser.
3. While deciding on the issue of a child's representative, the court shall take
into account the fact that retention of the representation rights of the child to the violent parent is prejudicial to the interests of the child. It shall be impermissible to retain joint custody of the child to the parents, if there is a reasonable suspicion with regard to one of the parents, that he/she undertook act of violence against the child.

Article 15. Ensuring Prevention of Apprehension of the Child and other Safety Measures

1. When deciding on terms of visits of the child by a violent parent, the parent
shall be given the right to visit the child only in case where all safety measures are taken, including place of the visit, time, periodicity, duration an person(s) responsible for protection of safety measures.
2. In cases where safety measures are not observed, the right of the violent

parent to visit the child shall be restricted. If the restriction lasts for more than 3 months, the parent, whose rights are being restricted, may refer to the court requesting the amendment of conditions of the visit.
3. In case of abduction of the child by the violent parent or in case of real threat
of other damage, the court may decide to prohibit the violent parent to visit the child until the change of circumstances.

Chapter V. Properties of Legal Proceedings with regard to Domestic Violence

Article 16. Duties of the Police

1. In cases of domestic violence Police shall immediately respond to the fact and
take all legal measures. Police shall not be authorized to consider domestic violence case inferior to other cases of violence.
2. In case of receiving notification of the fact of violence, the police shall immediately report to the scene, notwithstanding whether notification was received from the victim, witness of violence or other person as set by Article 11.
3. Where case of violence is present, the police shall:
a. take all legal measures to eliminate the fact of domestic violence;
b. separately interview the possible victim, witnesses, abuser, including children, which shall be recorded;
c. inform the victim of the domestic violence of his/her rights
d. Upon request of the victim or in case of necessity, to ensure transfer of the victim to the institution of medical care;
e. Upon request of the victim or in case of necessity, to ensure the transfer of the victim or his/her children to the shelter;
f. In case of transfer to another location, to ensure that a victim takes his/her personal belongings from the place of residence;
g. To ensure safety of the person reporting the case of violence;
h. To issue a restrictive order as prescribed by law.
4. The police shall draw a record of the case of domestic violence and measures
taken, which shall be submitted to the supervising prosecutor.
5. The police shall separately mention in its reports information (data) on the
facts of domestic violence, measures taken, number of victims, measures enforced against the violator, as well as other statistical data.

Chapter VI. Social and Labor Guarantees for Victims of Domestic Violence, Abuser’s Rehabilitation Measures

Article 17. Temporary Shelter for Victims of Domestic Violence

1. Shelters of the Ministry of Labour, Healthcare and Social Protection shall
meet conditions of life and shall ensure primary and emergency medical and psychological assistance.
2. Non-entrepreneurial legal entity may establish a shelter if it meets minimal
standards set by the Ministry of Labour, Healthcare and Social Protection for institutions of that type.
3. Activities of shelters shall be regulated by the Charter (Regulations), defining
rules for the victim placement in the shelter and his/her rehabilitation.

Article 18. Placement of the Victim at Specialized Institutions and Shelters

1. In cases of domestic violence, where the person, indicated in the article 11
so requests, the law enforcement agencies shall ensure the transfer of the victim to the shelter or a specialized institution.
2. The victim shall be place in the shelter for a period not exceeding 2 months.
If necessary, the term may be extended in accordance with the term prescribed
by the Charter of the shelter, except cases when the victim does not wish to stay longer. If the threat to the victim is still present after the expiry of the term, the shelter or specialized institution shall inform the law enforcement agencies for the purposes of providing response to such threat.
4. In case of placement of the victim of domestic violence at the shelter, he/she
shall retain the job in the same position.

Article 19. Information on Victims of Domestic Violence

The information on state of physical and psychological status of the victim shall be confidential and its disclosure shall be permitted only in cases provided by law.

Article 20. Abusers' Rehabilitation Centre

In order to ensure temporary placement and rehabilitation of the abuser, the Ministry of Labour, Healthcare and Social Protection as well as non-entrepreneurial legal entity shall establish rehabilitation centres for abusers. Such centres shall meet standards set by the Ministry of Labour,

Healthcare and Social Protection for institutions of such kind and ensure temporary placement, psychological assistance and treatment of abusers.

Chapter VII
Concluding and Transitional Provisions

Article 21. Measures to be taken with Regard to Enactment of the Law.

1. Until enactment of the Chapter VI of this law, the Ministry of Labour, Healthcare and Social Protection shall determine minimal standards for temporary shelters for victims of domestic violence and abusers' rehabilitation centres.
2. Before July 1, 2006, Ministry of Labour, Healthcare and Social Protection and local self-governance institutions shall define mechanisms for providing social services and support training (preparation) of social workers.
3. Within 1 month upon publishing the law, the Ministry of Internal Affairs shall
develop and approve a restrictive order form.
4. Request the Government of Georgia to approve a special plan determining
special measures aimed at elimination of domestic violence and protection and assistance to victims of domestic violence within 4 months upon publishing the law.

Article 22. Enactment of the Law
1. This law shall come into force upon publishing
2. Chapter VI of this law shall come into force as of January 1 2008.

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